Topic 8 — State Government

Covers syllabus (click to expand)

Governor | Governor's Discretionary Powers | Absolute (निरपेक्ष) vs Situational Discretion | Reservation of Bills for the President (Arts. 200–201) | Ordinance by Governor (Art. 213) | State Executive | Chief Minister | State Council of Ministers | Advocate General (महाधिवक्ता) | Legislative Assembly | Legislative Council | Creation & Abolition of Legislative Council | Unicameral vs Bicameral Legislature | Speaker of Legislative Assembly | Hung Assembly | Dismissal of Council of Ministers

Sources baked in: Laxmikanth (State Executive / State Legislature), Constitution Part VI (Arts. 153–213), UPPCS Prelims PYQs 2018–2025 **Weight:** ★★★ — Art. **155 ≠ removal** (appointment); same person **can** be Governor of two States (7th Amd / Art. 153 proviso); CoM min **12** / max **15%** of LA (91st); LC **max 1/3 of LA, min 40**; LC can be **abolished not dissolved**; Art. **200/201** (President not bound on a reserved Bill even if re-passed); Art. **162** = *extent* of executive power **Last verified:** September 2026 — Ghatnachakra Extra Drill (Governor + State Legislature); teaching gap-pass from dump **Current Affairs:** Six States still bicameral (AP, Bihar, Karnataka, Maharashtra, Telangana, **UP**). UP LA **403**, LC **100**. LG Ladakh **Kavinder Gupta** (from July 2025); Rajasthan Governor **Haribhau Kisanrao Bagde** (from 31 July 2024).

Current Affairs

Live facts for match / how-many / hung-house questions.

- **Ongoing:** Six bicameral States: AP, Bihar, Karnataka, MH, Telangana, UP (match / how-many).
- **2019:** J&K Legislative Council **abolished** with the State (Art. 169 / reorganisation trap). J&K UT with legislature + Ladakh (लद्दाख) UT without; both under **Lieutenant Governors** appointed by the President.
- **First LGs:** J&K UT — **Girish Chandra Murmu**; Ladakh — **Radha Krishna (कृष्ण) Mathur** (31 Oct 2019).
- **Convention:** *Bommai* floor-test still the fact in every hung-house controversy (discretion vs majority).
- **First woman Governor: Sarojini Naidu** (UP / United Provinces, 15 Aug 1947 – 2 Mar 1949); National Women's Day **13 February** (her birth date).
- **Rajasthan:** Rajpramukh abolished on States Reorganisation Commission recommendation via **7th Amendment** (from 1 Nov 1956); first Governor **Gurumukh Nihal Singh** appointed **25 Oct 1956** (not 1 Nov).

State Executive — the frame

- **Part VI (Arts. 153–167).** Every State has a Governor (**Art. 153**). The State Executive = **Governor + Chief Minister + Council of Ministers + Advocate General**.
- Parliamentary (Westminster) system at the State: Governor is the **nominal / de jure** head; the **real / de facto** executive is the CoM headed by the CM.
- **Art. 154:** executive power of the State is **vested in the Governor**, exercised by him directly or through officers subordinate — in practice on CoM advice (**Art. 163**), except where the Constitution gives him **discretion**.
- Office is **borrowed from Canada** (appointed by the Centre), **not** the USA (where governors are elected). The Constituent Assembly dropped an elected Governor.
- **Art. 361 immunities** (same scheme as the President): no court for **official** acts; **no criminal proceedings** while in office; civil proceedings only after **2 months' notice**.

> **Logic:** The Governor is a **constituent part of the State legislature** (Art. 168) just as the President is of Parliament — even though he sits in neither House.

Governor — appointment, term, conditions (Arts. 153–162)

Nominated constitutional head (Canada model, not USA): appointed by the President; 5-year outer term at pleasure; same person **can** hold two or more States.

- **153:** Office of Governor. **Proviso (7th Amendment, 1956):** the **same person** may be appointed Governor of **two or more States**.
- **154:** Executive power of the State vested in the Governor.
- **155:** Governor is **appointed** by the **President** by warrant under his hand and seal (मुद्रा) — **not elected**.
- **156:** Term **5 years**; holds office **during the pleasure of the President**; may resign to the President. No impeachment procedure (प्रक्रिया).
- **157:** Citizen of India; completed **35 years**. Citizenship **by birth is not** required. Eligibility for Lok Sabha (लोकसभा) membership is **not** a qualification.
- **158:** Shall **not** be a member of Parliament or a State legislature (seat vacated if appointed); no other office of profit; official residence; emoluments **charged on the State Consolidated Fund** under **Art. 202(3)(a)** (shared if he is Governor of two States).
- **158(3A):** When the same person is Governor of two or more States, emoluments are allocated among those States in such proportion as the **President** may by order determine.
- **159:** Oath before the **Chief Justice of the High Court** (in his absence, the senior-most HC judge). The Governor's oath form is in **Art. 159**, **not** the Third Schedule.
- **160:** President may make provision for the discharge of the Governor's functions in any contingency.
- **161:** Pardoning power — **no death sentence, no court-martial** (those are the President, Art. **72**).
- **162: Extent** of the executive power of the State (co-extensive with the State List (राज्य सूची) / Concurrent List (समवर्ती सूची), subject to the Union).

Why nominated, not elected (Constituent Assembly): - An elected Governor would have meant **another statewide election** and higher political conflict with the Chief Minister. - An elected Governor might have felt **superior** to the CM. - The office had to fit a **parliamentary** system with Centre–State coordination; Ambedkar (अम्बेडकर) and Nehru (नेहरू) favoured nomination over election.

Conventions (Sarkaria) the Centre is supposed to follow (often broken): - Governor should be an **eminent outsider** (not from the State). - Should be a **detached figure** without intense recent political links. - **Chief Minister should be consulted** before appointment. - Should **not** be a member of the ruling party at the Centre in the usual sense of partisan posting. - Punchhi (2010) wanted a **fixed 5-year tenure** and removal only by a process akin to impeachment — **not implemented**.

Tenure facts - 5 years is the **outer** limit; he continues until a successor enters (so the office is never vacant). - Pleasure of the President = **no security of tenure**, **no grounds** required, **no impeachment**, and **no removal by a State Assembly resolution**. The Constitution lays down **no detailed removal procedure** beyond pleasure. - Emoluments determined by **Parliament**; **charged on the State Consolidated Fund**; cannot be diminished during the term (**Art. 158(4)**). If he is Governor of two States, the States **share** the cost as the President orders. - **Art. 361:** no criminal proceedings during the term; not answerable to any court for official acts; civil proceedings on personal acts need **two months' written notice**. Courts **cannot** enquire into ministerial advice to the Governor (**Art. 163(3)** parallel to **74(2)**).

Governor — powers

Five heads of the same office: executive, legislative, financial, judicial, plus Art. **371…** special responsibility.

- **Executive:** All State executive action in his **name** (166). Appoints CM, other ministers, **Advocate General**, State Election Commissioner, Chairman & members of the **State PSC** (removed by the **President**, not the Governor — trap). Nominates members of the LC under **Art. 171** (theory **1/6**; actual numbers follow the **Representation of the People Act, 1950** — UP LC has **10** nominees out of **100**).
- **Legislative:** Summons / prorogues the House(s); **dissolves the LA** (not the LC). Addresses the first session of the year / after each general election (**Art. 176**). Sends messages. Decides on Bills (**200**). Promulgates **ordinances (213)**. Anglo-Indian nomination to the LA under **Art. 333** ended after **25 January 2020** by the **104th Amendment**.
- **Financial:** Money Bill / demand for grants only on his **recommendation**. Causes the State **Budget (Art. 202)** to be laid. Contingency Fund (आकस्मिकता निधि) of the State at his disposal. Constitutes the **State Finance Commission (वित्त आयोग)** (Art. 243-I).
- **Judicial:** Pardon, reprieve, respite, remission, commutation under **161** for offences against **State law** — **not** death, **not** court-martial. Consults the HC on appointment of **district judges** (Art. 233 — detail in Judiciary). Does **not** appoint High Court judges (President does under **Art. 217**).
- **Special (371…):** Discretionary "special responsibility": e.g. **Maharashtra & Gujarat** (development boards), **Nagaland 371A (अनु. 371A)** (law and order involving religious/social practices), **Arunachal 371H**, **Karnataka 371J**, **Andhra/Telangana 371D**.

Art. 164 extra fact: States of **Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha** *shall* have a minister in charge of **tribal welfare**.

> **Logic:** Art. **155** = appointment, not removal. SPSC members are **appointed by the Governor** but **removed by the President** (after SC enquiry) — do not mix. NCT Delhi's CM is appointed by the **President** (**Art. 239AA**), not by a State Governor (राज्यपाल) pattern.

PYQ — UPPCS Prelims 2024, Q21

Which one of the following is not correctly matched?

A. Article 153 – Office of the Governor B. Article 154 – Executive Authority of the Governor C. Article 155 – Removal of the Governor D. Article 156 – Term of the Governor

Show answer

Logic: Match each Article to its real content — 155 is appointment by warrant, not a removal clause. **Ans: C.** Article **155 = appointment** by the President. Removal = **pleasure** under Art. 156.

PYQ — UPPCS Prelims 2024, Q100

Assertion (A): According to the Constitution of India, the same person cannot function as the Governor of two or more States at the same time.

Reason (R): Article 153 of the Indian Constitution states that there shall be a Governor for each State.

A. Both (A) and (R) are true, but (R) is not the correct explanation of (A) B. (A) is false, but (R) is true C. Both (A) and (R) are true and (R) is the correct explanation of (A) D. (A) is true, but (R) is false

Show answer

A/R logic: Art. 153's main clause needs a Governor for each State; the 7th Amendment proviso allows one person to hold more than one State. So A invents a ban that does not exist. **Ans: B.** (A) is **false** — the **7th Amendment** proviso to Art. 153 **allows** one person to be Governor of two or more States. (R) is true (there shall be a Governor for each State — which can be the same person).

PYQ — UPPCS Prelims 2019, Q108

Which of the following is correct about the heading of the Article 162 of the Constitution of India?

A. Executive Power of State B. Conditions of Governor's Office C. Term of the Office of Governor D. Extension of Executive Power of State

Show answer

Logic: Headings of 154 / 156 / 158 / 162 are easy swaps in options. **Ans: D.** Official heading of Art. **162** is **"Extent of executive power of State"** (papers often render it "Extension"). A = Art. **154**; B = Art. **158**; C = Art. **156**.

Discretionary powers — absolute vs situational (Art. 163)

Art. 163(1): CoM with the CM at the head to **aid and advise** the Governor, **except** insofar as he is by or under the Constitution required to act in his **discretion**. **Art. 163(2):** if any question arises whether a matter is discretionary, the **Governor's decision is final** and cannot be called in question.

Kind	Meaning	Typical cases
Constitutional / absolute discretion	The Constitution **itself** requires the Governor to act on his own	Reserving a Bill for the President (**200**); recommending **President's Rule (356)**; seeking information from the CM (**167**); special responsibility in **Art. 371** States (e.g. Nagaland, Arunachal, Maharashtra/Gujarat development boards, etc.)
Situational discretion	The Constitution is silent; political reality forces a choice	**Hung Assembly** — whom to invite as CM; dismissing a CoM that has **lost the House** but will not resign; dissolving the LA when the CM has lost majority / advises dissolution (विघटन) after losing a floor test

Constitutional (absolute) discretion — full list 1. Reserving a Bill for the President (**Art. 200**). 2. Recommending **President's Rule** (**Art. 356**). 3. Seeking information from the CM (**Art. 167**). 4. **Special responsibility** under **Arts. 371–371J** (and 6th Schedule (6वीं अनुसूची), some governors). 5. Deciding, under **Art. 163(2)**, whether a matter *is* discretionary.

Situational discretion — full list 1. Appointing the CM when **no party has a clear majority** (hung). 2. Dismissing the CoM when it has **lost the LA** but will not resign. 3. Dissolving the LA when the CM has lost (or never had) majority and no alternative government is possible. 4. Advising the President on whether 356 is warranted after a political breakdown.

Case facts - ***S.R. Bommai* (1994):** majority **on the floor**; a ministry with LA majority **cannot** be dismissed; 356 is justiciable. - ***Rameshwar Prasad* (2006):** dissolving Bihar LA **without a floor test** was unconstitutional. - ***Nabam Rebia* (2016):** Governor's discretion is **not a general reservoir of power**; he cannot use it to **thwart** the Assembly (e.g. advancing a session to defeat a Speaker).

> **Logic:** "The Governor always acts on advice" is **false**. Art. 163 **expressly** carves out discretion, and 163(2) makes his classification **final** — but *Nabam Rebia* says that finality is **not** a blank cheque.

Hung Assembly & dismissal of the Council of Ministers

Hung Assembly: no party / pre-poll alliance has a clear majority after the LA election. Governor's call is **situational discretion** — majority on the **House floor** (*Bommai*).

- **Governor's call:** Invite a leader who can prove majority.
- **Floor test:** Must be held **at the earliest**; window-shopping of MLAs in Raj Bhavan is what *Bommai* condemned.
- **If CM loses the test:** CoM **must resign**. If it does not, the Governor **may dismiss** it (Art. 164 — pleasure, read with *Bommai*).

- **Dissolution:** Governor may dissolve the LA on CM advice **only if** the CM still commands (or just lost and no alternative is possible). A CM who has lost the House **cannot** be allowed to dissolve merely to avoid a rival's claim.
- **President's Rule:** If no government can be formed, Governor reports under **Art. 356**.

Dismissal (Art. 164): ministers hold office during the **Governor's pleasure**, but pleasure is **not** a licence to sack a majority ministry. Collective responsibility is to the **Legislative Assembly**.

If the CM resigns or dies, the whole CoM goes (collective responsibility). The Governor may ask another leader to prove majority, or report under 356.

Invite-order (Sarkaria / Punchhi — sequence) (1) **Pre-poll alliance** that has a majority → (2) **largest single party** claiming support → (3) **post-poll coalition (गठबंधन)** with a majority claim → (4) **floor test at the earliest** (usually within days, not weeks).

Reservation of Bills — Arts. 200 & 201

When a Bill passed by the State legislature is presented, the Governor **may** (Art. **200**):

Option	Ordinary Bill	Money Bill
Assent	Yes	Yes
Withhold assent	Yes	Yes
Return for reconsideration ("as soon as possible" — **no fixed time limit** in the Constitution)	Yes	**No**
If House(s) **re-pass** a returned Bill	Governor **shall assent** (or may still **reserve** for the President)	—
Reserve for the President	Yes	**Yes** (can reserve a Money Bill too)

Mandatory reservation (2nd proviso to Art. 200): a Bill which in the Governor's opinion would **so derogate from the powers of the High Court** as to endanger its constitutional position.

Other Bills **often** reserved (practice, not the 2nd proviso): those against Directive Principles (राज्य के नीति निदेशक तत्व), of grave national importance, dealing with compulsory acquisition under Art. 31A, or those the President must assent to under the Constitution.

Art. 201 (President on a reserved Bill): No time limit — the President's **pocket veto on State Bills**; unlike the Governor, he is **never bound** if the House re-passes. The President **cannot** suo motu pick up a State Bill; it must be **reserved and sent by the Governor**.

- **Assent:** Bill becomes an Act.
- **Withhold assent:** Bill dies.
- **Direct the Governor to return** it (if not a Money Bill): State legislature reconsiders.
- **If the House(s) pass it again:** President is **still not bound** to assent.

> **Logic:** Governor **must** assent to an ordinary Bill that he returned and the House re-passed — or he may reserve it. The **President is never so bound**. There is **no joint sitting** at State level — deadlock between LA and LC is solved by **Art. 197** (LA prevails), not by the Governor.

Governor's ordinance (Art. 213)

State parallel of Art. 123 — but **213** is the only ordinance power that can require **another authority's (President's) instructions**.

- **When:Unicameral:** LA not in session. **Bicameral:both Houses** not in session (Laxmikanth fact).
- **Force:** Same as an Act of the State legislature; can be retrospective; cannot do what the legislature cannot do.
- **Life:** Must be laid; ceases **six weeks** from reassembly, or earlier if disapproved. Maximum theoretical life ≈ 6 months (session gap) + 6 weeks.
- **President's instructions *compulsory*** (3 provisos): (i) a Bill that would have needed the **President's prior sanction**, (ii) a Bill the Governor would have **reserved**, (iii) an Act of the same kind that would have been **invalid without the President's assent**.
- **Cannot:** Amend the Constitution; encroach on the Union list (संघ सूची); violate FRs.

> **Logic:** Compare **123 (President)** — no "instructions" from anyone. **213** is the only ordinance power that can require **another authority's (President's) instructions**. *D.C. Wadhwa* (re-promulgation = fraud) applies to States too.

Chief Minister & Council of Ministers (Arts. 163–164, 167)

Real executive: CM + CoM collectively responsible to the **LA only**; size cap is the **91st Amendment**.

- **Appointment:** Governor appoints the CM; other ministers **on the CM's advice** (Art. 164).
- **Who can be CM:** Normally the leader of the majority in the **LA**. Can be from the **LC** (rare). A person who is **not a member** of either House can be CM/minister but must become one within **6 months** (164(4)).
- **10th Schedule bar (164(1B)):** A member **disqualified for defection** cannot be a minister (91st).
- **Collective responsibility:** To the **Legislative Assembly only** (not the Council) — Art. 164(2). Resignation/death of the CM = **whole CoM goes**.
- **Individual responsibility:** Ministers hold office during the **pleasure of the Governor** (in practice, the CM's).
- **Size (91st Amendment, 2003):** Total including CM ≤ **15%** of the LA; **minimum 12** including CM. The floor of 12 applies even to small Assemblies.
- **Tribal welfare minister:Compulsory** in **Chhattisgarh, Jharkhand, Madhya Pradesh, Odisha** (Art. 164).

- **Art. 167:** CM must **communicate** CoM decisions, furnish information, and submit a matter to the Council if the Governor so requires (parallel to Art. **78**). Participation in the National Development Council is administrative practice, **not** an Art. 167 duty.
- **Oath:** Art. 164(3) — before the Governor; **Third Schedule**.
- **Deputy CM:** Not in the Constitution (like Deputy PM) — a political rank.
- **First woman CM: Sucheta Kriplani** (Uttar Pradesh, 1963) — not Sarojini Naidu (first woman **Governor**).

CM vs Governor (role)Real vs nominal executive — CM answers to the LA; Governor is the President's appointee.

CM	Governor
Real executive; majority in **LA**	Nominal executive; **appointee** of the President
Can be from LA or LC	Cannot be an MP/MLA
Resigns to the **Governor**	Resigns to the **President**

PYQ — UPPCS Prelims 2020, Q118

What can be the minimum strength of Council of Ministers including Chief Minister in the States?

A. 10 B. 12 C. 13 D. 14

Show answer

Ans: B — 12 (91st Amendment).

Advocate General (Art. 165)

Highest law officer of the State (parallel to the AG of India, Art. **76**): pleasure of the **Governor**, **HC-judge** qualification.

- **Appointment:** By the **Governor**; must be qualified to be a **High Court judge** (citizen + 10 years HC advocate **or** 10 years judicial office).
- **Term / removal:No fixed tenure**; **no procedure**; holds office during the **pleasure of the Governor**. Remuneration also fixed by the Governor.
- **Rights (Art. 177):** Audience in all **courts in the State**; may **speak and take part** in both Houses and their committees; **not entitled to vote** *by virtue of this article*.
- **Practice:** Not a full-time government servant — may take private briefs, **not against the State**.
- **Assisted by:** Additional / Deputy Advocates General — **statutory / executive**, not in the Constitution.

> **Logic:** AG of India = pleasure of the **President**, SC-judge qualification. Advocate General = pleasure of the **Governor**, **HC-judge** qualification. Neither is removed like a judge.

State Legislature — unicameral vs bicameral (Arts. 168–169)

Art. 168: a State legislature = the **Governor** + Legislative Assembly (**Vidhan Sabha** (विधानसभा)), and, in some States, a Legislative Council (**Vidhan Parishad** (विधान परिषद)). The Governor is a **part of** the legislature (assent, address, ordinance).

	Unicameral	Bicameral
Houses	Only **LA**	**LA + LC**
How LC is created / abolished	—	**Art. 169**
Deadlock on an ordinary Bill	—	**Art. 197** — LA **prevails**. **No joint sitting** in a State

Art. 169 procedure 1. The **Legislative Assembly** passes a resolution by **special majority** (majority of **total membership** (सदन की कुल सदस्य संख्या का) + **2/3 of members present and voting (गणपूर्ति)**). 2. **Parliament** then **may** pass a law by **simple majority**. That law is **not** deemed an Art. **368** amendment (so no special majority, no State ratification). 3. The Assembly resolution does **not** create a hard obligation on the Union Government to introduce a Bill, and it does **not** force the Governor to reserve the resolution for the President. 4. Parliament's law may contain **supplemental, incidental and consequential** provisions (representation, sitting members, etc.).

No joint sitting at State level (high-yield trap) Unlike Parliament's Art. **108**, a State has **no joint sitting**. If the LC rejects / amends / sits on an ordinary Bill that started in the LA: the LA may pass it again; after the LC has had **1 month** on the second round, the Bill is **deemed passed by both Houses** in the form adopted (अंगीकृत) by the LA (**Art. 197**). A Bill that **originates in the LC** and is rejected by the LA **dies**.

PYQ — UPPCS Prelims 2018, Q148

Which of the following CAN NOT be dissolved but abolished?

A. House of People B. Council of State C. Legislative Assembly D. Legislative Council

Show answer

Ans: D — Legislative Council. It is a **continuing** House (like RS) so it is **not dissolved**; but unlike RS it **can be abolished** under Art. 169. RS is permanent and **cannot** be abolished by that route. LA **can** be dissolved. LS can be dissolved.

States with a Legislative Council (six)

Andhra Pradesh, Bihar, Karnataka, Maharashtra, Telangana, Uttar Pradesh.

(J&K's Council ended with the 2019 reorganisation. Tamil Nadu (नाडु) / Punjab / West Bengal / Andhra have abolished and, in AP's case, later revived.)

Legislative Assembly (Art. 170, 172, 174–180)

Vidhan Sabha: directly elected; **max 500, min 60**; **5 years**; **can be dissolved**; UP = **403** (largest).

- **Strength (Art. 170):Max 500, min 60** elected. Parliament may by law alter. Smaller Assemblies exist by special provision (Goa (गोवा) 40, Sikkim 32, Mizoram 40, Arunachal 60, Nagaland 60, Puducherry 30, etc.).
- **UP:403** elected — **largest LA in India**.
- **Election:** Direct; **FPTP**; territorial constituencies. SC/ST reservation (**Art. 332**). Anglo-Indian nomination (**333**) ended by the **104th**. Seat freeze till the census after **2026**.
- **Term (Art. 172):5 years** from the first meeting; **can be dissolved** earlier by the Governor. National Emergency (राष्ट्रीय आपात): extend **1 year at a time**, not beyond **6 months after** the Emergency ends.
- **Age:25 years**.
- **Sessions (Art. 174):** Governor summons / prorogues / **dissolves LA**. Maximum gap **6 months**.
- **Quorum (Art. 189):10 members or 1/10** of total membership, **whichever is greater**.
- **Disqualification:** Art. **191** (same five heads as Art. 102, plus 10th Schedule). Decision: **Governor + binding EC opinion** (**Art. 192**) — *not* the Speaker, except defection.
- **Vacation:** Dual membership; resignation to Speaker; **60 days'** absence (Art. 190).
- **Privileges:Art. 194** (parallel to 105); 44th (44वां संशोधन) = as on 20 June 1979.
- **Language:Art. 210** — Hindi or official language of the State, or English.
- **Money Bill (Arts. 198–199):** Introduced **only in the LA**, on the **Governor's recommendation**. Speaker's certificate **final**. LC: **14 days**, recommendatory only.
- **Budget (Art. 202):** Annual Financial Statement (वार्षिक वित्तीय विवरण) of the State; Demands for Grants voted **only in the LA**. Charged on the **State CFI**: Governor's emoluments, Speaker/Dy Speaker, Chairman/Dy Chairman of LC, HC judges, debt charges.

Other large Assemblies (match-list): West Bengal **294**, Maharashtra **288**, Bihar **243**, Tamil Nadu **234**, Madhya Pradesh **230**, Karnataka **224**, Rajasthan **200**.

Legislative Council (Arts. 169, 171–173)

Vidhan Parishad: continuing House like RS — **never dissolved**, **can be abolished** (169); **max 1/3 of LA, min 40**; UP = **100**.

- **Size (Art. 171):Not more than 1/3** of the LA **and not less than 40**. (So an LA must be at least **120** for a 40-member LC to be constitutionally possible.)
- **UP LC:100** (1/3 of 403 would allow up to 134; Parliament/State law fixed 100). Under the **RPA 1950** schedule, the Governor nominates **10** of those 100 (often tested as **1/10**, not the textbook **1/6** of Art. 171(3)).
- **Term:6 years**; **1/3 retire every 2 years**; **cannot be dissolved**.
- **Age:30 years**.
- **Election system:PR-STV**, secret ballot (except the Governor's nominees).
- **Chairman / Deputy Chairman:** Elected **from among LC members** (Arts. 182–183). **Not** the Governor. Removal: majority of all then members.
- **Does not vote for:President of India** (only elected MLAs do). Assembly MLAs do vote for RS seats and help elect LC MLA-quota seats.

Composition (Art. 171) — five streams (must add to 1)

- **1/3:** Local bodies — municipalities, district boards and such other local authorities as Parliament specifies.
- **1/12:Graduates** of **three years'** standing, resident in the State.
- **1/12:Teachers** in educational institutions **not lower than secondary**, of three years' standing.
- **1/3:MLAs**, from among persons who are **not** MLAs.
- **1/6:Nominated by the Governor** — literature, science, art, **co-operative movement**, social service.

> **Logic:** LC nomination includes **co-operative movement**; RS nomination (**12**) does **not**. Graduates / teachers = **1/12 each**, not 1/3. A Bill that **starts in the LC** and is rejected by the LA **dies** (Art. 197 does not save it).

PYQ — UPPCS Prelims 2023, Q13

With reference to the composition of the Legislative Council in a State of India, which of the following statement(s) is/are correct?

1. The Legislative Council may not have more than one-third of the total membership of the Legislative Assembly of that State.
2. The Legislative Council of a State must have at least forty members.

A. Only 1 B. Only 2 C. Both 1 and 2 D. Neither 1 nor 2

Show answer

Ans: C — Both (Art. 171).

Speaker of the Legislative Assembly (Arts. 178–181)

Constitutional office (Art. 178): elected from among LA members; continues after dissolution until the new House first meets.

- **Election:** From among LA members; date fixed by the Governor (first sitting) / Speaker (thereafter).
- **Term:** Continues **after dissolution** until the first meeting of the new LA.
- **Resignation:** Speaker → **Deputy Speaker**; Deputy Speaker → **Speaker**.
- **Removal (Art. 179):14 days' notice** + majority of **all the then members**. Cannot preside over his own removal.
- **Casting vote:** Votes only to **break a tie**.
- **Money Bill:** Decides whether a Bill is a Money Bill (**Art. 199**) — decision **final**.
- **10th Schedule:** Decides defection (judicially reviewable — *Kihoto / Nabam Rebia*).
- **Pro Tem Speaker:** Appointed by the **Governor** (usually senior-most MLA); oath + Speaker's election.

Deputy Speaker is a constitutional office (Art. 178). Convention (often broken): from the opposition. Panel of Chairmen (Rules of Procedure) preside if both are absent.

Governor vs President (quick contrast)

Nominated vs elected; pleasure vs impeachment; 161 cannot touch death / court-martial.

Point	President	Governor
Election	Indirect (Electoral College)	**Nominated** by the President
Removal	Impeachment (Art. 61)	**Pleasure** of the President (no impeachment)
Dual charge	One President	**Can** be Governor of two+ States
Pardon death / court-martial	**Yes** (72)	**No** (161)
Ordinance	Art. 123 (Parliament not in session)	Art. 213 (legislature not in session); **President's instructions** in some cases
Discretion	Narrow (hung LS, pocket veto, one reconsideration of advice)	**Wider** — Art. 163 + reservation under Art. 200 + Art. 356 report + hung LA
Reserved Bill re-passed	—	Governor **must** then assent under Art. 200 path; **President need not** under Art. 201
Pocket / indefinite hold	Art. **111** has **no** fixed time limit (pocket veto)	Art. **200** uses "as soon as possible" for return — different clock from ordinance six weeks

- Read **President** discretion narrowly and **Governor** discretion more widely under Art. **163**.
- On a reserved State Bill, Art. **200** binds the Governor after the Assembly re-passes; Art. **201** still leaves the President free to assent, withhold, or return.

UP Focus (State Government)

Bicameral State: LA **403** + LC **100**; Raj Bhavan Lucknow (लखनऊ); High Court principal seat **Prayagraj** (प्रयागराज).

- **UP Legislative Assembly:403** elected seats (largest LA in India).
- **UP Legislative Council:100** (bicameral).
- **Governor of UP:** Appointed by the President; Raj Bhavan, Lucknow.
- **High Court:** Principal seat **Prayagraj** (Letters Patent **17 Mar 1866**; first sat **Agra** (आगरा)). **Lucknow Bench** 1948 (Oudh Chief Court 1925 merged). Not a second High Court.

Mains link (one frame)

- The Governor is a **constitutional head with a Union tether**: Art. 163 discretion + Art. 200 reservation + Art. 356 report are the three levers. *Bommai* narrowed the third (floor test). Arts. **200–201** still let the Centre sit on a State Bill with **no time limit** — the sharpest remaining asymmetry between Raj Bhavan and Rashtrapati Bhavan.